

## Laws you must follow

We regulate the live animal export industry to ensure it meets:

- Australian export legislation
- the [Australian Standards for the Export of Livestock \(ASEL\)](#)
- importing country requirements

The export of live animals from Australia is regulated by:

- [Export Control Act 2020](#)
- [Export Control \(Animals\) Rules 2021](#)
- [Export Control \(Fees and Payments\) Rules 2021](#)

## Our compliance approach

We detail our compliance approach in the following document.

### Download

[Compliance statement of the export of livestock \(PDF 1.6 MB\)](#) [Compliance statement of the export of livestock \(DOCX 1.5 MB\)](#)

If you have difficulty accessing these files, visit [web accessibility](#) for assistance.

The core elements of our approach are to:

- assist stakeholders to understand their rights and obligations
- make it easy to meet regulatory obligations
- support stakeholders who are trying to do the right thing
- pursue those who deliberately break our laws.

## How we check compliance

We check and verify export activities to ensure compliance. To do this, we:

- review an exporter's practices before approval of an application for an approved arrangement
- regularly audit exporters and registered establishments
- inspect documents and livestock before export
- deploy [independent observers](#) on livestock vessels
- review reports required by ASEL to be provided to us, such as daily and end of voyage reports
- review independent audit reports of overseas facilities.

We may investigate information we receive about possible non-compliance.

## How we enforce compliance

We may take appropriate action when non-compliance is suspected or detected.

Find out more about [compliance investigations](#).

## How we make regulatory decisions

When making a regulatory decision, our approach is informed by:

- government policy
- legislative authority
- regulatory objectives
- an understanding of regulatory risks.

We take a risk-based approach to regulation. This allows us to assess the risk and act to manage potential harm.

Our decisions will be underpinned by clear governance processes that are regularly reviewed, transparent, robust and defensible.

## Seeking review of a decision

Certain decisions are reviewable under the Export Control Act 2020 (the Act) by an internal reviewer (see s 381 of the Act). If the reviewable decision is made by the Secretary personally, then the decision may be reviewed by the Administrative Review Tribunal (ART). Find out more in Chapter 11, Part 2 of [the Act](#).

If your interests have been affected by a decision, you may be able to seek a review.

### Internal reviews

- Relevant persons may apply for internal review of reviewable decisions made under the Act or the [Export Control \(Animals\) Rules 2021](#).

A review application must:

- be made in writing
- set out your reasons for the application
- be made within 30 days after the day the reviewable decision came to the notice of the applicant (we may allow a longer period).

We will review the decision and let you know the outcome.

## **Administrative Review Tribunal reviews**

An application may be made to the ART by, or on behalf of, a relevant person for review of:

- a reviewable decision made by the Secretary personally; or
- a decision resulting from an internal review of a reviewable decision.

The ART conducts independent merits review of administrative decisions made under Commonwealth laws. See the [ART website](#) for how to apply.

Applications must be submitted to the ART within 28 days after the applicant receives the reviewable decision. There may be circumstances which affect when timeframes otherwise commence. Please refer to the Administrative Review Tribunal Act 2024 and Part 2 of the Administrative Review Tribunal Rules 2024 for further information.

## **Judicial reviews**

A person who is aggrieved by a decision may apply to the Federal Court or the Federal Circuit and Family Court of Australia for an order of judicial review of the decision on any one or more of the grounds set out in s 5 of the Administrative Decisions (Judicial Review) Act 1977 (ADJR Act).

You must apply for judicial review within usually 28 days of receiving the decision. Please refer to s 11 of the ADJR Act for further information on timeframes.

## **Ombudsman investigation**

You may request the Commonwealth Ombudsman to investigate a complaint.

Source: <https://www.agriculture.gov.au/biosecurity-trade/export/controlled-goods/live-animals/livestock/regulating-live-animal-exports>